

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANNIKKA MCALLISTER,

Petitioner

VS.

DERRICK BENSON,

Respondent

) Case Number: FDV-24-818009

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), SEE ATTACHMENT 8 - ADDITIONAL ORDER REQUESTED

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 7/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Annikka McAllister (Mother) and Respondent Derrick Benson (Father) have two minor children together, Michael (DOB 8/30/2017, age 8), and Marcus (DOB 8/10/2022, age 3). The Court dismissed Mother's request for a Domestic Violence Restraining Order (DVRO) against Father after she did not appear at the DVRO hearing; however, the Court maintained its prior order for sole legal and physical custody to Mother with one-hour, weekly supervised visits for Father at Rally Family Visitation Services (Rally).
- 2) On 10/15/2025, the Court ordered that Father may have his one-hour, weekly supervised visits at either Rally or at Healthy Families Happy Families (Healthy Families). On 10/17/2025, the Court issued a 3-year DVRO against Father protecting Mother and the children. On 2/4/2026, the Court

maintained its prior order for supervised visits at either Rally or Healthy Families. On 5/13/2026, the Court maintained the Rally order and awarded Father an additional 2 hours of supervised visits per week through Happy Families.

- 3) On for hearing is Father's request filed 5/1/2026 seeking a change in custody and parenting time, a minimum of 2-3 hour visits, a makeup policy for missed visits, a step-down plan from supervision toward less restrictive visitation, access to the children's medical, education, and therapy records, and minor's counsel for the children, a speech evaluation for Marcus, a custody evaluation, and an evidentiary hearing as the Court deems appropriate or necessary.
- 4) Mother opposes Father's requests, stating she was trafficked and sexually and physically abused by Father, who is 19 years older than she is. Mother states that Father kidnapped her and their child and that law enforcement became involved. Mother states the current order is necessary for the children's safety. She states that Marcus is already enrolled in speech-related services and she is perusing an IEP assessment through his school. Mother states she objects to the appointment of minor's counsel because the children already have substantial court protections in place.
- 5) Father has filed two supplemental declarations. He states the delays and difficulty in coordinating visits through Rally and Healthy Families have impacted his ability to demonstrate successful visits. He seeks joint legal custody and reiterates his requests for access to school and medical records, a step-up parenting time schedule, and other requests.
- 6) Mother has filed a declaration requesting that Rally visits be discontinued (she states Fridays no longer work for her for religious reasons and because she cares for her elderly uncle) and that the 2-hour, Sunday visits continue.
- 7) On 7/17/2026, Father filed a reply in which he reiterates many of his requests. In addition, he states that Mother was 45 minutes late to a 6/5/2026 Rally visit and that Rally canceled his 7/17/2026 visit and informed him that Mother was no longer available on Fridays. Father states he immediately completed all necessary steps in case the visits need to be rescheduled.
- 8) The parties attended mediation and were unable to reach an agreement.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

- 3 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/23/2026 in**
4 **Department 404.**